RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

Free Will & God's Knowledge: We Must Know We're Free, Not How

Hilchot Teshuvah Perek 5

Sefer: Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance)

Chapter: 5 (complete, Halachot 1–5)

Shiur: Given by Dayan Daniel Kada on Zoom, Tuesday 12 November 2024

These notes are based on the Sofer.ai transcript of the recording.

Introduction: The Chapter in One Sentence

Recap of Chapters 1–4

Chapter	Topic
1	The definition of teshuvah and its relationship with *viduy*
2	*Teshuvah gemurah*; the best times for teshuvah; how to do viduy; asking others' forgiveness; whether sins should be publicised
3	*Tzaddik, rasha, beinoni*; those with no share in the World to Come
4	The 24 impediments to teshuvah, in five categories (almost impossible; doors locked; no complete teshuvah; presumed not to repent; hard to stop), yet teshuvah always remains possible

"We must know that we have free will, but we cannot know *how* we have free will"

That, the Rabbi said, is Chapter 5 in one sentence. Elements of it had come up in earlier shiurim (especially the **Shemonah Perakim** earlier in the year), but this chapter puts the whole picture together systematically.

Why is this in a book of halacha?

The **Mishneh Torah is a book of halacha, not philosophy.** The Rambam's philosophy is in the *Moreh Nevuchim* and in his commentary on the Mishnah (the eighth of the Eight Chapters). Yet he explains the mechanics of free will here because, as he repeats throughout the chapter, **without free will, everything he has said about teshuvah makes no sense.** If we are not free, we cannot be obliged to repent.

Part 1: Every Person Is Free (Halacha 1)

רשות כל אדם נתונה לו: אם רצה להטות עצמו לדרך טובה ולהיות צדיק, הרשות בידו; ואם רצה להטות עצמו לדרך רעה ולהיות רשע, הרשות בידו

Every person is granted licence: if he wishes to incline himself to the good path and be righteous, the choice is his; if he wishes to incline himself to the evil path and be wicked, the choice is his.

"Behold, man has become like one of us": two readings

The proof-text is Bereishit 3:22: **הן האדם היה כאחד ממנו לדעת טוב ורע.**

Reading	Translation	Meaning
Rashi	"Man has become like one *of us*"	He is unique in the lower world as I am unique in the upper world. Others read: he is like the angels, knowing good and evil
The Rambam, following **Targum Onkelos** (*"ha adam havah yechidai be'alma minei"*)	"Man has become **one, unique**, *of himself*, in knowing good and evil"	Man is the one species with nothing like it, able by his own mind to know good and evil and do whatever he wishes

כלומר, הן מין זה של אדם היה יחיד בעולם ואין מין שני דומה לו בזה הענין, שיהא הוא מעצמו בדעתו ובמחשבתו יודע הטוב והרע ועושה כל מה שהוא חפץ, ואין מי שיעכב בידו

That is: this human species is unique in the world, and no other species resembles it in this: that by his own understanding and thought he knows good and evil and does whatever he desires, and no one can hold him back.

The Rabbi noted that he would have called Rashi's reading "the simple one" only because that is how he learned the verse as a child. Onkelos, roughly 2,000 years old and from the time of the Tannaim, reads it exactly as the Rambam does. Animals have no choice between good and bad; **man alone does**. That is why "lest he stretch out his hand and take also from the Tree of Life" follows: he might choose that too, so he is banished from Gan Eden.

The halachic point: once it is established that a person is free, he is obliged to do teshuvah.

Part 2: Nothing Decrees What You Will Become (Halacha 2)

אל יעבור במחשבתך דבר זה שאומרים טפשי אומות העולם ורוב גולמי בני ישראל, שהקדוש ברוך הוא גוזר על האדם מתחילת ברייתו להיות צדיק או רשע. אין הדבר כן, אלא כל אדם ראוי לו להיות צדיק כמשה רבינו או רשע כירבעם, או חכם או סכל, או רחמן או אכזרי, או כילי או שוע, וכן שאר כל הדעות

Do not let pass through your mind what the fools among the nations and most of the undeveloped among Israel say, that the Holy One, blessed be He, decrees from a person's birth whether he will be righteous or wicked. It is not so. Every person can be as righteous as Moshe Rabbeinu or as wicked as Yeravam; wise or foolish, merciful or cruel, miserly or generous; and so with all the other traits.

No one forces him, decrees for him, or pulls him to either path.

Yirmeyahu, read as a statement

מפי עליון לא תצא הרעות והטוב (Eichah 3:38)

Simply read, this is a **rhetorical question**: "Do not both evil and good come from the mouth of the Most High?" The Rambam reads it as a **statement**: from God does *not* come whether you will be good or bad. Hence the next verses: **מה יתאונן אדם חי**, "what does a living man complain of?"; **נחפשה דרכינו ונחקורה ונשובה עד ה'**, "let us search our ways and return to Hashem." Because we are fully responsible, we must do teshuvah.

Question 1: the angel at conception (Niddah 16b)

The **Hagahot Maimoniyot** (student of the Maharam of Rothenburg, about 700 years ago) and others are astonished. The Gemara says an angel takes the drop at conception and asks: **גבור או חלש, חכם או טיפש**, strong or weak, wise or foolish? That sounds like exactly the determinism the Rambam rejects.

"All the commentators struggle... they give very difficult and really non-convincing answers." But **there is a simple answer**, which **Rav Kafich** also gives, and which the Rambam himself gives in the **Shemonah Perakim** (Chapter 8) and the *Moreh*:

People are born with a propensity, a nature, a tendency. What you do with it is your free will.

Born with...	Free will decides...
A high IQ	Whether you ever develop it. If not, you will not end up wise
A low IQ	Whether to put in the (much greater) effort to develop it, "perhaps even [becoming] a wise person"
A kind or a harder nature	Whether you work on it or leave it undeveloped

"We do not deny that people are born with certain natures. Some people are born kinder than others. That's certainly true. The question is, do you develop that? ... That's your choice."

The Rabbi's comment on why the question arises: "This is the problem if you learn parts of the Rambam without learning the rest of his works."

Question 2: "No prophet arose like Moshe"

One of the **13 Principles of Faith** is that there will never be a prophet like Moshe (**ולא קם נביא עוד בישראל כמשה**). So how can the Rambam say anyone can be **צדיק כמשה רבינו**?

The answer again comes from the Shemonah Perakim:

- **Chapter 2:** the soul has several faculties. The Torah's commands are aimed at the **faculty of will** (*ratzon*), which is then expressed in the **faculty of action**.
- **Chapter 7:** prophecy requires two perfections:
- **Intellectual perfection**, a threshold: you have it or you don't.

- **Moral perfection** of the character traits. You need *most* of it for the lowest level of prophecy; how much you have determines the prophet's level.
- **Moshe was unique** in reaching 100% moral perfection, and in that it reached not only his *actions* but his **inner will and character** itself.

So:

Anyone can be as righteous as Moshe in deeds. Our actions can be as complete as his. What is reserved for Moshe alone is that 100% perfection becoming his **intrinsic character**. "We do things all the time. The question is, do those actions translate into our intrinsic character or not?"

Part 3: The Pillar of Torah and Mitzvot (Halacha 3)

ודבר זה עיקר גדול הוא, והוא עמוד התורה והמצוה

This is a great principle; it is the pillar of the Torah and the commandments.

The Rambam cites **ראה נתתי לפניך היום את החיים ואת הטוב** ("See, I have set before you today life and good...") and **מי יתן והיה לבבם זה להם**, "If only their heart would be like this," which shows that **Hashem does not force anyone**; He hopes we will choose well.

Note the limits: the Rambam speaks of **מעשי בני האדם**, human *actions*. How wealthy, healthy, beautiful or plain a person is created is Hashem's decision. What we *do* is entirely ours.

Rabbi Sacks: the fourteenth principle

It was **Rabbi Sacks' yahrzeit** that week, and the Rabbi shared a "beautiful idea" in his memory.

The Rambam loved the number **14**:

- The Mishneh Torah is the **יד החזקה**, *yad* = 14, in **14 books**.

- His introduction to *Sefer HaMitzvot* lays down **14 principles** for counting the 613 commandments.

Yet there are only **13** principles of faith, and here he calls free will **עיקר גדול**, "a great principle." Why isn't it the fourteenth?

- **The usual answer:** it is included in the principle of **reward and punishment**, which is impossible without free will. But when the Rambam explains reward and punishment, he never mentions free will. "So it's still a bit difficult."
- **Rabbi Sacks' answer:**

"The 13 principles of faith are our faith in God. The fourteenth is God's faith in us": that we are free.

He liked to quote **Isaac Bashevis Singer**: "We must have free will; we have no choice."

Life without free will

The Rabbi: "I just do not understand how people get out of bed and get on with their life" if they believe we are purely programmed by genes, upbringing and society.

- **Morally**, it would mean no one should be *punished*. At most we would remove "biologically troublesome" people from society.

- **Existentially**, "life becomes absolutely pointless."

Part 4: Without Free Will, the Torah Collapses (Halacha 4)

אילו האל היה גוזר על האדם להיות צדיק או רשע, או אילו היה שם דבר שמושך את האדם בעיקר תולדתו לדרך מן הדרכים... כמו שבודים מלבם טפשי הוברי שמים, היאך היה מצוה לנו על ידי הנביאים עשה כך ואל תעשה כך?... ובאי זה משפט או מדה נפרע מן הרשע או משלם שכר לצדיק? השופט כל הארץ לא יעשה משפט?

If God decreed that a person be righteous or wicked, or if something drew a person from his very birth to one of the paths... as the foolish astrologers invent, how could He command us through the prophets "do this, don't do that"?... And by what justice would He punish the wicked or reward the righteous? "Shall the Judge of all the earth not do justice?"

Avraham's challenge over Sedom applies: **it is not justice to punish people who are not free.** No commandments, no reward and punishment, "the whole Torah would go."

Question 3: doesn't this contradict "propensity"?

In Halacha 2 we accepted that a person is born with a propensity. Here the Rambam seems to deny even that: nothing "draws a person from his very birth." And the Gemara in **Shabbat 156** says one born under **Mars** (*Ma'adim*) will spill blood, as a murderer, or as a *shochet* or *mohel*. So astrology seems to give at least a tendency.

Answer: the Rambam is disagreeing with that Gemara, and the key word is **astrologers**.

- The Rambam held that while the Talmud is binding, he had licence to depart from an individual statement where other Sages disagreed, and he says so explicitly. The Gemara itself says **אין מזל לישראל**, Israel is not bound by the stars.

- In his **Letter on Astrology** (the class plans to study the Rambam's letters after finishing Hilchot Teshuvah, from January), he writes, in translation:

"I know that you may search and find sayings of some individual sages in the Talmud and Midrashim whose words appear to maintain that at the moment of a man's birth the stars will cause such and such to happen to him. Do not regard this as a difficulty... It is not proper to abandon matters of reason that have already been verified by proofs and depend on the words of a single one of the sages, from whom possibly the matter was hidden... A man should never cast his reason behind him, for the eyes are set in front, not in back."

- The famous Midrash on Lech Lecha (**ויוצא אותו החוצה**: Hashem took Avram "outside," *above* the stars, out of the influence of his *mazal*, so that he could have children) is another such individual statement.
- In the **Letter to Yemen** he tells them to wash these beliefs out of their minds "just like you take your dirty garments to the dry cleaner."

So, in summary:

1. The stars and constellations have **no influence at all** on a person's nature or decisions.

2. A person has **full free will**.

3. It is still true that a person is born with a **propensity**, not from the stars but because **Hashem creates him with a certain nature**, which he can work on and change.

Question 4: how can a person act against God's will?

שמא תאמר: והלא הקדוש ברוך הוא עושה כל מה שהוא חפץ... דע שהכל כחפצו נעשה

The Rambam's answer: just as Hashem willed that **fire rises and water falls** and the planets keep their orbits, **He willed that man be free.** "There is a force of nature called free will. Just like gravity is reality, friction is reality." Our freedom to act against His commands *is* His will.

"Rejoice, young man, in your youth"

A man in shul used to tease the Rabbi, home from yeshivah, with Kohelet: **שמח בחור בילדותך**, "Rejoice, young man, in your youth"; take a break, take it easy. But the verse continues: **ודע כי על כל אלה יביאך האלהים במשפט**, "but know that for all these God will bring you to judgement." Shlomo is speaking rhetorically: do as you wish, but you will answer for it.

Part 5: The Big Question: Foreknowledge (Halacha 5)

The question

We believe Hashem is perfect; therefore He knows everything: past, present and **future**. If He knows what I will choose, how am I free?

שמא תאמר: והלא הקדוש ברוך הוא יודע כל מה שיהיה... דע שתשובת שאלה זו ארוכה מארץ מדה ורחבה מני ים

Perhaps you will say: doesn't the Holy One, blessed be He, know everything that will be?... Know that the answer to this question is "longer than the earth and broader than the sea."

The Islamic philosophers wrestled with it, as does **Rav Saadiah Gaon** in *Emunot VeDeot* (the Monday class). There are four main approaches: **Rav Saadiah**, **Ralbag** (Gersonides), **Rabbi Chasdai Crescas**, and **the Rambam**. The others accept the question and try to limit one side or the other. The Rambam's answer, the Rabbi believes, is the best: **there is no question.**

Step 1: God and His knowledge are one

From **Hilchot Yesodei HaTorah, Chapter 2**: the unity of God means not only that there is one God but that **all His "attributes" are one with His essence**: absolute simplicity, no multiplicity.

A human being	God
There is the person *and* his wisdom, his kindness, his truthfulness. These can be lost or changed. **Multiplicity.**	His knowledge, compassion and so on are not separate "traits"; they **are** His essence. **Simplicity.**

אין הקדוש ברוך הוא יודע בדעה שהיא חוץ ממנו כבני אדם שהם ודעתם שנים, אלא הוא יתעלה שמו ודעתו אחד

The Holy One, blessed be He, does not know with a knowledge external to Himself, like people, who are two, themselves and their knowledge. He, may His name be exalted, and His knowledge are one.

What about the 13 Attributes of Mercy?

They describe **how we perceive** Hashem's actions. The Rabbi's analogy: **sunlight is one**, but ten people on a beach wearing red, green and blue glasses each see a different light. "So too... it is manifested to us in different ways... But God has no attributes."

Step 2: we cannot know His essence, so we cannot know His knowledge

וכשם שאין כח באדם להשיג ולמצוא אמתת הבורא, שנאמר כי לא יראני האדם וחי, כך אין כח באדם להשיג ולמצוא דעתו של בורא. הוא שהנביא אמר: כי לא מחשבותי מחשבותיכם ולא דרכיכם דרכי

Just as man cannot grasp the true nature of the Creator, as it says "no man can see Me and live," so man cannot grasp the Creator's knowledge. As the prophet said: "My thoughts are not your thoughts, nor your ways My ways."

Why this is not a cop-out

"He's not giving a cop-out answer... He's saying: of course they go together. ... You're asking a question on God's knowledge... it's a different kind of knowledge."

- **We are bound by time.** Our knowledge is built on past, present and future, so "knowing the future" sounds like fixing it.
- **Hashem's knowledge is above time.** It is not "fore"-knowledge at all.
- So the contradiction exists **only from the human point of view.** "The question doesn't start."

ואנו יודעים בלא ספק שמעשה האדם ביד האדם

And we know without doubt that a person's actions are in his own hands.

How free will and divine knowledge coexist we cannot know; **that** they do, we know. Therefore a person is responsible for his actions, and the whole Torah makes sense.

From the class: **Mark** suggested it depends whose perspective you look from, and that there are things beyond our control. The Rabbi agreed: from the human perspective there is a question; from God's there isn't.

The Ra'avad's objection

לא נהג המחבר הזה מנהג החכמים, שאין אדם מתחיל בדבר ואינו יודע להשלימו

This author did not act in the manner of scholars, for no one begins something he does not know how to finish.

The Ra'avad (Rabbi Avraham ben David): the Rambam raised a huge question and answered "just believe." Better not to ask it at all than to plant doubts. He offers an answer of his own, similar to Rav Saadiah's: watching someone deliberate for sixty seconds about whether to get out of bed for shul, and knowing the outcome, doesn't force it. Then he concedes his own answer is not really a good one.

The Rabbi's comments:

1. **The Ra'avad did not understand the Rambam.** Had he, there would be no question: the Rambam is not saying "just believe" but giving a philosophical answer, the same one he gives in the Shemonah Perakim and the *Moreh*.

2. **Keeping quiet about hard questions?** "Surely part of faith is grappling with these things and discussing them."

3. It's fascinating that the Ra'avad worries the question will cause doubts, and then admits he has no good answer to it himself.

Summary

1. **Every person is free** to be righteous or wicked (Halacha 1); man is *unique* (Onkelos) in knowing good and evil.
2. **Nothing decrees** who you will be (Halacha 2). We are born with **propensities** (the angel in Niddah), but what we do with them is our choice.
3. Anyone can match **Moshe in deeds**; what is unique to Moshe is perfection reaching his inner character.
4. Free will is **the pillar of Torah and mitzvot** (Halacha 3). Rabbi Sacks: the 13 principles are our faith in God; the 14th is **God's faith in us**.
5. Without free will there could be no commandments and no justice (Halacha 4). **Astrology has no influence at all**; the Rambam openly disagrees with individual Talmudic statements suggesting otherwise. Our freedom *is* Hashem's will, like the laws of nature.
6. **Foreknowledge** (Halacha 5): God and His knowledge are one; we cannot grasp His essence, so we cannot grasp His knowledge, which is **above time**. The contradiction exists only from our side. The Ra'avad's objection misreads the Rambam.

We must know that we have free will. We cannot know how.

Coming Up

- **Chapter 6** next week.
- The full survey of approaches to free will and foreknowledge (Rav Saadiah, Ralbag, Crescas) will come in the **Monday night *Emunot VeDeot*** class.
- **From January:** the Rambam's letters, including the Letter on Astrology and the Letter to Yemen.

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